

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
JOSE DEJESUS,

SUMMONS

Plaintiff,

Index No.:

-against-

The basis of venue is:

Location of the incident

THE CITY OF NEW YORK, LEIUTENANT PAUL
GAGLIO, Tax No. 900141, POLICE OFFICER
FRANCIS FLYNN, Tax No. 950424, LEIUTENANT
MELISSA LEE, Tax No. 921491, and POLICE
OFFICERS JOHN DOES # 1-10 (names and numbers of
whom are unknown at present),Plaintiff designates Bronx
County as the place of trial.

Defendants.

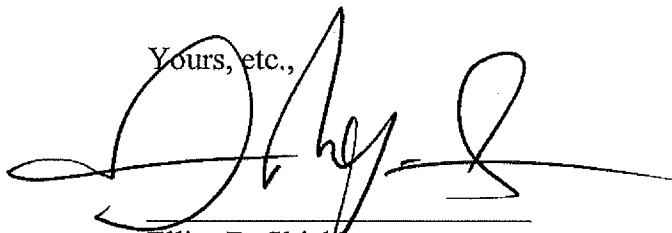
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To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
April 12, 2018

Yours, etc.,

Elliot D. Shields
Roth & Roth, LLP
Counsel for Plaintiff
192 Lexington Avenue
Suite 802
New York, New York 10016
(212) 425 1020CITY OF NEW YORK CORPORATION COUNSEL, 100 Church Street, New York, New
York 10007LEIUTENANT PAUL GAGLIO, Tax No. 900141, Patrol Borough Bronx, 450 Cross Bronx
Expy, Bronx, New York 10457POLICE OFFICER FRANCIS FLYNN, Tax No. 950424, Bronx Robbery Squad, 1086 Simpson
Street, Bronx, New York 10459LEIUTENANT MELISSA LEE, Tax No. 921491, 44th Precinct, 2 East 169 Street, Bronx, New
York, 10452

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
JOSE DEJESUS,

Plaintiff, **COMPLAINT**

-against-

Index No.:

THE CITY OF NEW YORK, LEIUTENANT PAUL GAGLIO, Tax No. 900141, POLICE OFFICER FRANCIS FLYNN, Tax No. 950424, LEIUTENANT MELISSA LEE, Tax No. 921491, and POLICE OFFICERS JOHN DOES # 1-10 (names and numbers of whom are unknown at present),

Defendants.

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Plaintiff **JOSE DEJESUS**, by his attorneys, ROTH & ROTH, LLP, as and for his Complaint herein, allege upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action brought to vindicate plaintiff's rights under the First, Fourth, and Fourteenth Amendments of the Constitution of the United States, through the Civil Rights Act of 1871, *as amended*, codified as 42 U.S.C. §§ 1983 and 1988, and under the laws of the State of New York. Plaintiff seeks compensatory damages, punitive damages and attorney's fees.

PARTIES

2. Plaintiff, JOSE DEJESUS, is a citizen of the United States and a resident of the County of the New York, State of New York.
3. Defendant THE CITY OF NEW YORK ("CITY") is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant CITY assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the NYPD.
4. Police Officer ("P.O.") FRANCIS FLYNN ("FLYNN") (Tax No. 950424) and JOHN DOES # 1-10 (collectively "defendant NYPD officers") are and were at all times relevant herein, officers, employees and agents of the NYPD. The defendant police officers are being sued in their individual and official capacities.
5. LEIUTENANT PAUL GAGLIO ("GAGLIO"), (Tax No. 900141) and LIEUTENANT MELISSA LEE ("LEE") (Tax No. 921491), (collectively "supervisory defendants") are and were at all times relevant herein, officers, employees and agents of the NYPD. The supervisory defendants are being sued in their individual and official capacities.

6. Defendant NYPD officers and supervisory defendants collectively referred to as "defendant police officers."
7. At all times relevant herein, the defendant police officers were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the NYPD, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the NYPD at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the NYPD and incidental to the lawful pursuit of their duties as officers, employees and agents of the NYPD.
8. The acts of the defendant police officers hereafter complained of were carried out intentionally, recklessly, with malice, and in gross disregard of plaintiff's rights.
9. At all relevant times, the defendant police officers were engaged in joint ventures, assisting each other in performing the various actions described herein and lending their physical presence in support and the authority of their offices to one another.
10. Plaintiff in furtherance of his State causes of action filed a timely Notices of Claim against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50. The Notice of Claim were filed on April 12, 2017.
11. More than thirty (30) days have elapsed since service of said Notice of Claim were filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.
12. This action is being brought within a year and 90 days of the event giving rise to plaintiff's State causes of action.

STATEMENT OF FACTS

13. On January 14, 2017, at approximately 9:30 p.m., plaintiff JOSE DEJESUS was lawfully walking with a friend on the sidewalk on Audobon Avenue in the vicinity of the intersection with 162nd Street, Bronx, New York.
14. Plaintiff is a freelance automotive mechanic, and had taken a break from work to walk with his friend.
15. FLYNN and GAGLIO exited a police van and unlawfully approached Mr. DeJesus.
16. FLYNN and GAGLIO ordered Mr. DeJesus to stop and demanded he produce his identification.
17. Mr. DeJesus complied and produced his New York State driver's license.
18. FLYNN and GAGLIO asked Mr. DeJesus what he had in his pockets.
19. Mr. DeJesus told FLYNN and GAGLIO he had cash in his pockets.
20. Mr. DeJesus asked FLYNN and GAGLIO why they stopped him and stated he had done nothing wrong.

21. FLYNN and GAGLIO refused to answer Mr. DeJesus and forced him to spread his arms and legs so they could frisk and search him.
22. At no time did FLYNN and GAGLIO recover any drugs, weapons or contraband of any kind from Mr. DeJesus.
23. FLYNN and GAGLIO removed \$1616 cash from Mr. DeJesus' pocket.
24. FLYNN and GAGLIO did not observe Mr. DeJesus committing any criminal act.
25. FLYNN and GAGLIO did not possess a warrant to search or arrest Mr. DeJesus.
26. FLYNN and GAGLIO had not been provided with any information that would suggest that Mr. DeJesus engaged in any criminal activity.
27. FLYNN and GAGLIO lacked reasonable or probable cause to believe Mr. DeJesus had committed or was committing any criminal act.
28. Nevertheless, FLYNN and GAGLIO informed Mr. DeJesus that he was under arrest.
29. FLYNN and GAGLIO placed handcuffs upon Mr. DeJesus' wrists in an excessively tight manner, without cause or legal justification, causing him severe pain to his wrists.
30. FLYNN and GAGLIO placed Mr. DeJesus in the back of an NYPD van, which they drove around for approximately one hour.
31. After approximately one hour, FLYNN and GAGLIO transported Mr. DeJesus to the 44th Precinct, removed him from the van, and placed him in a lineup.
32. After the lineup, instead of booking and processing Mr. DeJesus at the precinct, FLYNN and GAGLIO placed Mr. DeJesus back inside the NYPD van and drove him around for approximately four hours, without any lawful reason for doing so.
33. FLYNN and GAGLIO had no lawful reason to keep Mr. DeJesus in their custody instead of booking him at the 44th precinct after the lineup.
34. Upon information and belief, after the lineup, FLYNN and GAGLIO kept Mr. DeJesus in their custody instead of booking him at the 44th precinct in order to obtain overtime pay.
35. After being detained in the van the second time for approximately three to four hours, Mr. DeJesus was transported to the 44th Precinct a second time.
36. Mr. DeJesus remained handcuffed in an excessively tight manner for approximately five hours from his initial stop and arrest until he was transported to the precinct the second time.
37. Mr. DeJesus informed the officers several times that his handcuffs were too tight and requested they be loosened, but the defendant police officers refused to loosen the handcuffs.
38. As a result of the defendant police officers refusing to loosen his handcuffs, Mr. DeJesus was caused to suffer severe pain and serious physical injuries.

39. When Mr. DeJesus arrived at the precinct, defendants processed and searched him, took his personal belongings from him, and placed him in a cell.
40. Mr. DeJesus' driver's license was taken from him, but was never vouchered and never returned to him.
41. Mr. DeJesus was detained in a cell at the 44th precinct for approximately five hours.
42. While at the 44th Precinct, FLYNN and GAGLIO fabricated their reasons for stopping and arresting Mr. DeJesus in official police paperwork.
43. Notably, FLYNN and GAGLIO's fabricated allegations were insufficient to provide reasonable or probable cause to support their arrest of Mr. DeJesus for any crime or violation.
44. FLYNN and GAGLIO lacked reasonable or probable cause to stop and arrest Mr. DeJesus, or to charge him with any crime.
45. Defendant LEE reviewed the arrest paperwork prepared by FLYNN and GAGLIO.
46. Defendant LEE knew that FLYNN and GAGLIO lacked reasonable or probable cause to stop and arrest Mr. DeJesus, or to charge him with any crime.
47. Nevertheless, Defendant LEE approved the arrest paperwork prepared by FLYNN and GAGLIO.
48. FLYNN and GAGLIO's arrest of Mr. DeJesus was made at the end of their regularly scheduled shift on January 14, 2017.
49. FLYNN and GAGLIO's arrest of Mr. DeJesus on January 14, 2017 was motivated by the desire to obtain overtime.
50. FLYNN and GAGLIO's extended detention of Mr. DeJesus in the van on January 14, 2017 was motivated by the desire to obtain overtime.
51. FLYNN and GAGLIO's arrest of Mr. DeJesus on January 14, 2017 caused them to have to work overtime hours past the end of their regularly scheduled shift in order to process Mr. DeJesus' arrest and complete the arrest paperwork.
52. As a result of FLYNN and GAGLIO's arrest of Mr. DeJesus on January 14, 2017, they each were paid 1 ½ times their normal salary in overtime pay for at least several hours, which was the time it took them to process Mr. DeJesus' arrest and complete his arrest paperwork.
53. Defendant LEE approved FLYNN and GAGLIO's request for overtime related to Mr. DeJesus' arrest, despite knowing they lacked reasonable or probable cause to arrest Mr. DeJesus or charge him with any crime.
54. The defendant police officers all conspired together to arrest Mr. DeJesus and charge him with crimes he did not commit in order for FLYNN and GAGLIO to obtain overtime pay.

55. While at the 44th Precinct, the defendant police officers fabricated their accounts of their reasons for stopping and arresting Mr. DeJesus in official police paperwork, falsely accusing him of committing various crimes, which was forwarded to prosecutors.
56. Despite knowing that FLYNN and GAGLIO had fabricated their accounts of the reasons they arrested Mr. DeJesus, LEE approved the arrest and paperwork, and instructed FLYNN to forward the false paperwork to prosecutors to initiate a prosecution of Mr. DeJesus on false charges.
57. After being detained in a cell at the 44th Precinct for approximately five hours, Mr. DeJesus was transported to Bronx Central Booking.
58. After being detained at central booking for approximately 12 hours, Mr. DeJesus was informed by an officer that the Bronx District Attorney had declined to prosecute his case.
59. Mr. DeJesus was released from custody at approximately 10:00 p.m. on January 15, 2017 without ever seeing a judge or being arraigned.
60. The Bronx District Attorney's Office declined to prosecute Mr. DeJesus because FLYNN and GAGLIO's false allegations in their arrest paperwork was insufficient to support reasonable or probable cause to arrest or prosecute Mr. DeJesus for any crime.
61. FLYNN and GAGLIO's false allegations included that: (1) Mr. DeJesus stated to a bodega cashier that he could sell a beer to a customer who lacked proper identification; and (2) FLYNN and GAGLIO knew that the customer attempting to purchase the beer was an undercover officer who was under the age of 21.
62. GAGLIO, a 25-year veteran of the NYPD, knew that the alleged statement made by Mr. DeJesus was insufficient to support reasonable or probable cause to arrest or prosecute Mr. DeJesus for any crime.
63. FLYNN knew that the alleged statement made by Mr. DeJesus was not a crime and was insufficient to support reasonable or probable cause to arrest or prosecute Mr. DeJesus for any crime.
64. LEE knew that the alleged statement made by Mr. DeJesus was not a crime and was insufficient to support reasonable or probable cause to arrest or prosecute Mr. DeJesus for any crime.
65. GAGLIO arrested Mr. DeJesus to obtain overtime pay.
66. In 2017, GAGLIO worked 585.67 hours of overtime, and obtained \$65,866.19 in overtime pay.
67. In 2016, GAGLIO worked 654 hours of overtime, and obtained \$63,341.42 in overtime pay.
68. In 2015, GAGLIO worked 607.08 hours of overtime, and obtained \$54,510.35 in overtime pay.
69. In 2014, GAGLIO worked 427 hours of overtime, and obtained \$39,642.85 in overtime pay.

70. FLYNN arrested Mr. DeJesus to obtain overtime pay.
71. In 2017, FLYNN worked 461.42 hours of overtime, and obtained \$30,453.12 in overtime pay.
72. In 2016, FLYNN worked 457.75 hours of overtime, and obtained \$21,947.14 in overtime pay.
73. In 2015, FLYNN worked 486.47 hours of overtime, and obtained \$18,469.74 in overtime pay.
74. In 2014, FLYNN worked 224.65 hours of overtime, and obtained \$6,943.13 in overtime pay.
75. After Mr. DeJesus' release from custody on January 15, 2017, he requested his \$1616 back, but the defendant police officers refused to return his money, without justification.
76. The defendant police officers withheld Mr. DeJesus' \$1616 until January 28, 2017 without any justification or lawful purpose.
77. After Mr. DeJesus' release from custody on January 15, 2017, he requested his driver's license back, but the defendant police officers refused to return his driver's license, without justification.
78. All of the above occurred as a direct result of the unconstitutional policies, customs or practices of the City of New York, including, without limitation, the falsification of evidence by police officers to justify the arrest and prosecution of innocent individuals, and the City's failure to discipline officers who fabricate evidence and make false arrests.
79. All of the above occurred as a direct result of the unconstitutional policies, customs or practices of the City of New York, including, without limitation, the false arrest of individuals as motivated by the desire to obtain overtime pay.
80. All of the above occurred as a direct result of the unconstitutional policies, customs or practices of the City of New York, including, without limitation, the failure to train officers on what constitutes probable cause to arrest for sale of alcohol to a minor, properly and truthfully completing paperwork, and lawful reasons for requesting overtime pay.
81. The aforesaid event is not an isolated incident. The defendant CITY is aware (from lawsuits, notices of claim, complaints filed with the NYPD's Internal Affairs Bureau, the CITY's Civilian Complaint Review Board, and media coverage) that many NYPD officers, including the defendants, are improperly trained, and are not disciplined following incidents where the NYPD is aware they have fabricated evidence, gave perjured testimony, and/or used made false arrests motivated by the desire to obtain overtime pay.¹

¹ See, e.g., Kendall Taggart and Mike Hayes, *Secret NYPD Files: Officers Can Lie And Brutally Beat People—And Still Keep Their Jobs*, BUZZFEEDNEWS (March 5, 2018), available at: https://www.buzzfeed.com/kendalltaggart/secret-nypd-files-hundreds-of-officers-committed-serious?utm_term=.qgeB84Kbm#.spNw05P8E; and Joseph Goldstein, 'Testilying' by Police: A Stubborn Problem, N.Y. Times (March 18, 2018), available at: <https://www.nytimes.com/2018/03/18/nyregion/testilying-police-perjury-new-york.html>. Both articles incorporated by referenced herein; moreover, all of the factual allegations and all of the allegations and findings in every case and internal NYPD investigation upon which the articles are based are incorporated in full as if fully set forth and pleaded herein.

82. Defendant CITY is further aware that such improper failure to discipline has often resulted in a deprivation of civil rights. Despite such notice, defendant CITY has failed to take corrective action. This failure caused the officers in the present case to violate the plaintiff's civil rights.
83. The defendant CITY was further aware (from lawsuits, notices of claim, complaints filed with the NYPD's Internal Affairs Bureau, the CITY's Civilian Complaint Review Board, and media coverage) that at the time of the incident at issue herein, the 44th Precinct's oversight, supervision and disciplinary procedures were constitutionally deficient.
84. Defendant CITY is further aware that such constitutionally deficient supervision and oversight has often resulted in a deprivation of civil rights. Despite such notice, defendant CITY has failed to take corrective action. This failure caused the officers in the present case to violate the plaintiff's civil rights.
85. For example, the CITY is aware that defendant GAGLIO has a long history of fabricating his account of the reasons for making arrests in official police paperwork.²
86. Defendant GAGLIO filed a false sworn statement in a criminal case against an 11-year-old girl named Angie to cover up the fact that he had used excessive force against her by throwing her on the sidewalk without justification.
87. As a result of the excessive force GAGLIO used against Angie, an 11-year-old girl in the sixth grade, Angie suffered serious physical injuries.
88. The allegations against Angie that defendant GAGLIO made in his affidavit were demonstrably false as they were contradicted by surveillance video.
89. Based on defendant GAGLIO's false claims, Angie, an 11-year-old girl, was charged with crimes.
90. These false charges by defendant GAGLIO were approved by supervising officers at the 44th Precinct.
91. All of the false charges defendant GAGLIO initiated against Angie were dismissed in their entirety.
92. Defendant GAGLIO falsely arrested, used excessive force against, and fabricated evidence against Davin Hernandez on or about July 23, 2009.
93. Davin Hernandez was prosecuted on the false charges initiated against him by GAGLIO by the New York County District Attorney's Office under docket No. 2009NY049976.
94. GAGLIO testified falsely at the Grand Jury to secure an indictment against Davin Hernandez, Indictment # 03487-2009.

² Jim Dwyer, *Misidentified and Tackled by the New York Police, but No Tennis Star Treatment*, N.Y. TIMES (Sept. 15, 2015), available at: https://www.nytimes.com/2015/09/16/nyregion/misidentified-and-tackled-by-the-police-but-no-tennis-star-treatment.html?_r=0. Articles incorporated by referenced herein; moreover, any and all of the factual allegations and all of the allegations and findings in every case and internal NYPD investigation upon which the articles are based are incorporated in full as if fully set forth and pleaded herein.

95. GAGLIO supervised other police officers and approved their false arrest, fabrication of evidence, and false testimony against Davin Hernandez.
96. All the false charges initiated against Davin Hernandez were dismissed when Mr. Hernandez was acquitted from a jury on October 5, 2010.
97. Upon information and belief, defendant GAGLIO was not disciplined as a result of the false arrest, excessive force, or fabrication of evidence against Angie.
98. Upon information and belief, defendant GAGLIO was not disciplined as a result of the false arrest, excessive force, or fabrication of evidence against Davin Hernandez.
99. The failure of the CITY and NYPD to discipline GAGLIO following his false arrest, assault and fabrication of evidence against Angie and Davin Hernandez were not isolated, but instead part of a continuing custom and practice of the defendant CITY and NYPD of failing to discipline officers who violate individuals' constitutional rights and lie in their paperwork to cover up their unconstitutional actions.
100. The failure of the CITY and the NYPD to discipline defendant GAGLIO for falsely arresting, assaulting, and fabricating evidence against Angie and Davin Hernandez was a direct and proximate cause of plaintiff's injuries and constitutional deprivations as described herein.
101. Moreover, defendant CITY was aware prior to the incident that the GAGLIO and FLYNN had repeatedly fabricated evidence and made false arrests toward the end of their shifts in order to fraudulently obtain overtime pay, but failed to discipline or otherwise take any corrective actions against the defendant police officers.
102. Moreover, defendant CITY was aware prior to the incident that the supervisory defendants had repeatedly approved and directly participated in the fabrication of evidence by defendant NYPD officers and other officers, and approved their requests for fraudulent overtime, but had failed to discipline or otherwise take any corrective actions against the supervisory defendants.
103. Moreover, defendant CITY was aware prior to the incident that the defendant police officers lacked the objectivity, temperament, maturity, discretion and disposition to be employed as police officers. Despite such notice, defendant CITY retained these officers and failed to adequately train and supervise them.
104. Upon information and belief, none of the defendant police officers have been disciplined as a result of their unlawful arrest, assault and fabrication of evidence against Mr. DeJesus, despite the CITY and NYPD being aware that said arrest and fabrication of evidence were undertaken solely for the purpose of defendants FLYNN and GAGLIO to fraudulently obtain overtime pay.
105. During all the foregoing wrongful acts committed against plaintiff, not one of the defendant police officers intervened on plaintiff's behalf to prevent the violation of his constitutional rights, despite having realistic opportunities to do so.
106. Because of the foregoing, plaintiff sustained, *inter alia*, physical pain, permanent physical injuries, mental injuries, emotional distress, embarrassment, humiliation, lost income, loss of liberty, and deprivation of his common law and constitutional rights.

107. Because of the foregoing, plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

PLAINTIFF'S INJURIES AND DAMAGES

108. As a direct and proximate consequence of the aforementioned actions by the defendants, plaintiff:

- a. Was detained for approximately 24 hours;
- b. Suffered physical injuries and physical sickness;
- c. Were subjected to degrading, dehumanizing and emotionally destructive conditions;
- d. Suffered and continues to suffer mental and emotional distress and harm;
- e. Suffered lost income;
- f. Suffered loss of property;
- g. Was publicly shamed, disgraced, ridiculed and humiliated and suffered damage to reputation; and
- h. Incurred other items of attendant damages.

FIRST CLAIM FOR RELIEF **DEPRIVATION RIGHTS UNDER 42 U.S.C. §§ 1981 and 1983**

109. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

110. All of the aforementioned acts of the Defendant CITY, and the Defendant POLICE OFFICERS and their agents, servants and employees ("Defendants"), were carried out under the color of state law.

111. All of the foregoing acts by Defendants deprived plaintiff of federally protected rights, including, but not limited to, the right:

- a. Not to be deprived of liberty without due process of law;
- b. To be free from seizure and arrest not based upon probable cause;
- c. To freedom from being subjected to false criminal charges by the police;
- d. To freedom from fabrication of evidence;
- e. To freedom from being subjected to false criminal charges by police officers motivated by the purpose to obtain overtime pay;

112. All of the aforementioned acts deprived plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the First, Fourth, and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

113. The acts complained of were carried out by the aforementioned individual NYPD defendants in their capacities as police officers with all of the actual and/or apparent authority attendant thereto.

114. The acts complained of were carried out by the aforementioned individual NYPD defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of Defendant CITY and the RPD, all under the supervision of ranking officers of said department.

115. As a result of the above constitutionally impermissible conduct, plaintiff was caused to suffer personal injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, legal expenses and damage to his reputation and standing within his community.
116. Defendant THE CITY and the NYPD are responsible for the actions of their employees under the doctrine of *Monell v. City of New York Department of Social Services*, 436 U.S. 658 (1978).
117. As a result of Defendants' impermissible conduct, plaintiff was injured and harmed.
118. Accordingly, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

SECOND CLAIM FOR RELIEF

FALSE ARREST / UNLAWFUL IMPRISONMENT UNDER 42 U.S.C. § 1983

119. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
120. One or more of the defendant police officers, including but not limited to defendants FLYNN and GAGLIO handcuffed and arrested Plaintiff.
121. The arrest was made in the absence of a warrant for the arrest.
122. The arrest was made in the absence of probable cause for the arrest.
123. The defendant police officers arrested plaintiff without having exigent circumstances for doing so.
124. There was no other authority for the arrest of plaintiff.
125. Plaintiff was conscious of the arrest.
126. Plaintiff did not consent to the arrest.
127. Accordingly, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

THIRD CLAIM FOR RELIEF

FALSE ARREST UNDER NEW YORK STATE LAW

128. Plaintiff re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
129. As a result of the aforesaid conduct by the Defendant CITY and the Defendant POLICE OFFICERS, Plaintiff was unlawfully detained and confined.
130. The Defendant POLICE OFFICERS—in performance of their duties with powers and authorities designated upon them by the Defendant CITY—intentionally confined Plaintiff.

131. Plaintiff was at all times consciously aware of his confinement by the Defendant POLICE OFFICERS.
132. At no point throughout Plaintiff's unlawful detention and confinement by the Defendant POLICE OFFICERS did Plaintiff consent to said confinement.
133. At no point throughout Plaintiff's unlawful detention and confinement by the Defendant POLICE OFFICERS were the actions of the Defendant POLICE OFFICERS otherwise privileged.
134. Defendant City is also liable to Plaintiff on the basis of *respondeat superior* as a result of the unlawful actions of the defendant police officers as described herein.
135. As a result of Defendants' impermissible conduct, Plaintiff was injured and harmed.
136. Accordingly, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

FOURTH CLAIM FOR RELIEF
FABRICATION OF EVIDENCE UNDER 42 U.S.C. § 1983

137. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
138. By deliberately manufacturing false evidence against plaintiff, including police reports containing the defendant NYPD officers' own fabricated and falsified accounts that Mr. DeJesus had committed crimes and/or offenses, and forwarding that fabricated evidence to prosecutors, the defendant NYPD officers caused Plaintiff Mr. DeJesus to be arrested, detained, and in violation of Plaintiff's rights, pursuant to the Fifth, Sixth, and Fourteenth Amendments to the United States Constitution, to due process of law and to a fair trial, and are liable to Plaintiff under 42 U.S.C. § 1983, for compensatory and punitive damages.
139. As a result of Defendants' impermissible conduct, Plaintiff was injured and harmed.
140. Accordingly, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

FIFTH CLAIM FOR RELIEF
FAILURE TO INTERVENE under 42 U.S.C. § 1983

141. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
142. The defendant police officers all had an affirmative duty to intervene on Plaintiff's behalf to prevent the violation of his constitutional rights by the other defendant police officers.
143. The defendant police officers failed to intervene on Plaintiff's behalf despite having had realistic opportunities to do so.
144. The defendant police officers failed to intervene on Plaintiff's behalf despite having substantially contributed to the circumstances within which plaintiff's rights were violated by their affirmative conduct.

145. As a result of the aforementioned conduct of the defendant police officers, Plaintiff's constitutional rights were violated.
146. As a result of Defendants' impermissible conduct, Plaintiff was injured and harmed.
147. Accordingly, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

**SIXTH CLAIM FOR RELIEF
NEGLIGENCE UNDER NEW YORK STATE LAW
(AGAINST THE CITY)**

148. Plaintiff re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
149. Defendant City was negligent in the hiring and retention of the defendant police officers as follows:
- A. Upon information and belief, Defendant City failed to use reasonable care in the hiring and retention of the Defendant Police Officers who conducted and participated in the acts of subjecting Plaintiff to an unlawful stop, unlawful seizure, unlawful search, false arrest, false imprisonment, denial of a fair trial, and who fabricated evidence against him and violated his constitutional rights in the manners described herein.
 - B. Defendant City knew, or should have known in the exercise of reasonable care, the propensities of the aforesaid Defendant Police Officers to engage in the wrongful conduct heretofore alleged in this complaint.
150. Defendant the City was negligent in the training and supervision of the Defendant Police Officers as follows:
- A. Defendant City knew or should have known that the requirements, guidelines, and terms of its training for the defendant police officers were insufficient and inadequate regarding truthfully filling out paperwork, making arrest for the purpose of obtaining overtime pay, and to prevent the Defendant Police Officers from engaging in the wrongful conduct heretofore alleged in this complaint.
 - B. Defendant City knew or should have known that the requirements, guidelines, and terms of its training for the defendant police officers were insufficient and inadequate regarding truthfully filling out and completing required police paperwork to document arrests and other interactions with citizens, and to prevent the defendant police officers from engaging in the wrongful conduct heretofore alleged in this complaint.

- C. Defendant City knew or should have known that the requirements, guidelines, and terms of its training for the defendant police officers were insufficient and inadequate regarding properly handcuffing arrestees to ensure that said handcuffs are not applied in an excessively tight manner and to avoid causing injury.

151. Defendant the City was negligent in failing to discipline and take corrective action against the defendant police officers as follows:

- A. Defendant the City knew or should have known that Defendant GAGLIO had repeatedly made false arrests and falsified arrest paperwork for the purpose of obtaining overtime pay, but failed to reprimanded, suspended, retrain him on the use of force, or otherwise discipline GAGLIO.
- B. Defendant the City knew or should have known that Defendant GAGLIO had repeatedly falsified official police paperwork regarding his account of the reasons for arresting and/or using force against individuals and arrestees, but failed to reprimanded, suspended, retrain him on the use of force, or otherwise discipline GAGLIO.
- C. Defendant the City knew or should have known that Defendant FLYNN had repeatedly made false arrests and falsified arrest paperwork for the purpose of obtaining overtime pay, but failed to reprimanded, suspended, retrain him on the use of force, or otherwise discipline FLYNN.
- D. Defendant the City knew or should have known that Defendant FLYNN had repeatedly falsified official police paperwork regarding his account of the reasons for arresting and/or using force against individuals and arrestees, but failed to reprimanded, suspended, retrain him on the use of force, or otherwise discipline FLYNN.

152. Defendant City is also liable to Plaintiff on the basis of *respondeat superior* as a result of the unlawful actions of the defendant police officers as described herein.

153. As a result of Defendants' impermissible conduct, Plaintiff was injured and harmed. Accordingly, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

SEVENTH CLAIM FOR RELIEF
CONVERSION / TRESPASS TO CHATTELS
UNDER THE LAWS OF THE STATE OF NEW YORK

154. Plaintiff re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

155. By interfering with plaintiff's possessory interests at the time of his arrest and/or detention, and thereafter, and by intentionally and maliciously refusing to return such

property to plaintiff despite his claim of right, the defendants have interfered with plaintiff's property interest to his exclusion.

156. The acts and conduct of the individual defendants were the direct and proximate cause of injury and damage to plaintiff and violated his statutory and common law rights as guaranteed by the Constitution and laws of New York. The defendants, therefore, are liable for conversion for properties removed from plaintiff, which have not been returned to him.
157. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the Defendant CITY and the NYPD, which are therefore responsible for their conduct.
158. The Defendant CITY, as the employer of individual NYPD defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.
159. As a result of Defendants' impermissible conduct, Plaintiff was injured and harmed. Accordingly, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

EIGHTH CLAIM FOR RELIEF
SUPERVISORY LIABILITY under 42 U.S.C. § 1983

160. Plaintiff re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
161. The supervisory defendants personally caused plaintiff's constitutional injuries by being deliberately or consciously indifferent to the rights of others in failing to properly supervise, train, and discipline their subordinate employees.
162. As a result of Defendants' impermissible conduct, Plaintiff was injured and harmed. Accordingly, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

NINTH CLAIM FOR RELIEF
ASSAULT UNDER NEW YORK STATE LAW

163. Plaintiff re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
164. FLYNN and GAGLIO rushed upon plaintiff, grabbed his body and hands, and placed handcuffs on his wrists in an excessively tight manner, despite not having reasonable or probable cause for his arrest.
165. The handcuffs were too tight, and were left on for unreasonable periods of time.
166. By the aforescribed conduct, the individual NYPD defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted Plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff, and that such acts caused apprehension of such contact in the Plaintiff.

167. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the Defendant CITY and the NYPD, which are therefore responsible for their conduct.

168. The Defendant CITY, as the employer of individual NYPD defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

169. As a result of Defendants' impermissible conduct, Plaintiff was injured and harmed. Accordingly, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

TENTH CLAIM FOR RELIEF
BATTERY UNDER NEW YORK STATE LAW

170. Plaintiff re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

171. FLYNN and GAGLIO rushed upon plaintiff, grabbed his body and hands, and placed handcuffs on his wrists in an excessively tight manner, despite not having reasonable or probable cause for his arrest.

172. The handcuffs were too tight, and were left on for unreasonable periods of time.

173. By the aforescribed conduct, FLYNN and GAGLIO, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered Plaintiff, when they, in a hostile and/or offensive manner struck Plaintiff and handcuffed him without his consent and with the intention of causing harmful and/or offensive bodily contact to the Plaintiff and caused such battery.

174. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the Defendant CITY and the NYPD, which are therefore responsible for their conduct.

175. The Defendant CITY, as the employer of individual NYPD defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

176. As a result of Defendants' impermissible conduct, Plaintiff was injured and harmed. Accordingly, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

ELEVENTH CLAIM FOR RELIEF
EXCESSIVE FORCE UNDER 42 U.S.C. § 1983

177. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

178. FLYNN and GAGLIO roughly seized and handcuffed plaintiff without probable cause for his arrest.

179. FLYNN and GAGLIO grabbed plaintiff, roughly searched him, and handcuffed him in an unreasonably tight manner without probable cause for her arrest.

180. The level of force employed by FLYNN and GAGLIO against plaintiff was objectively unreasonable.
181. The force employed by FLYNN and GAGLIO against plaintiff did not advance any proper governmental objective.
182. As a result of the aforementioned conduct, plaintiff suffered and sustained physical injuries.
183. As a result of Defendants' impermissible conduct, Plaintiff was injured and harmed. Accordingly, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

**TWELFTH CLAIM FOR RELIEF
MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983
ARISING FROM UNCONSTITUTIONAL MUNICIPAL POLICES RELATING TO
THE CITY'S CUSTOM, PRACTICE, AND POLICY OF FAILING TO DISCIPLINE
POLICE OFFICERS WHO FABRICATE EVIDENCE AND PROVIDE PERJURIOUS
TESTIMONY**

184. Plaintiff re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
185. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.
186. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department included, but were not limited to, police officers fabricating their account of their interactions with arrestees in official police paperwork and sworn court testimony in an attempt to justify their violation of said arrestees' constitutional rights.
187. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the NYPD constituted deliberate indifference to the safety, well-being and constitutional rights of plaintiff.
188. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the NYPD were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.
189. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the NYPD, plaintiff was unlawfully arrested and detained.
190. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating plaintiff's constitutional rights.
191. All of the foregoing acts by defendants deprived plaintiff of federally protected rights, including, but not limited to, the right:
- A. Not to be deprived of liberty without due process of law;
 - B. To a fair trial;
 - C. To be free from false evidence being created by the police to charge crimes;

192. The existence of aforesaid unconstitutional customs and policies may be inferred from repeated occurrences of similar wrongful conduct, as documented in below:

- A. *Dufort v City of New York*, 874 F.3d 338 (2d Cir 2017);
- B. *Garnett v. Undercover Officer C0039*, 838 F.3d 265, 275 (2d Cir. 2016);
- C. *Corey Avent v. City of New York*, United States District Court, Eastern District of New York, 04 CV 2451;
- D. *Reginald McMillan v. City of New York*, United States District Court, Eastern District of New York, 04 CV 3990;
- E. *Michael A. Smith v. City of New York*, United States District Court, Eastern District of New York, 04 CV 1045;
- F. *William Springer v. City of New York*, United States District Court, Southern District of New York, 05 Civ. 6845;
- G. *Chasity Rivera v. City of New York*, United States District Court, Southern District of New York, 05 Civ. 6769;
- H. *Rafael Santana v. City of New York*, United States District Court, Eastern District of New York, 06 Civ. 2411;
- I. *Lakus Brown v. City of New York*, United States District Court, Southern District of New York 07 Civ. 11186;
- J. *Davidson Beltran v. City of New York*, United States District Court, Southern District of New York (05 Civ. 6847);
- K. *Cordero v. City of New York*, 15-cv-3436 (JBW)(CLP) (Dec. 13, 2017);
- L. Kendall Taggart and Mike Hayes, *Secret NYPD Files: Officers Can Lie And Brutally Beat People—And Still Keep Their Jobs*, BUZZFEEDNEWS (March 5, 2018), available at: https://www.buzzfeed.com/kendalltaggart/secret-nypd-files-hundreds-of-officers-committed-serious?utm_term=.qgeB84Kbm#.spNw05P8E3;
- M. Joseph Goldstein, 'Testilying' by Police: A Stubborn Problem, N.Y. TIMES (March 18, 2018), available at: <https://www.nytimes.com/2018/03/18/nyregion/testilying-police-perjury-new-york.html>.⁴;
- N. Joseph Goldstein, *Police 'Testilying' Remains a Problem. Here Is How the Criminal Justice System Could Reduce It.*, N.Y. TIMES (March 22, 2018), available at: <https://www.nytimes.com/2018/03/22/nyregion/police-lying-new-york.html>.⁵;
- O. Jim Dwyer, *Misidentified and Tackled by the New York Police, but No Tennis Star Treatment*, N.Y. TIMES (Sept. 15, 2015), available at: https://www.nytimes.com/2015/09/16/nyregion/misidentified-and-tackled-by-the-police-but-no-tennis-star-treatment.html?_r=0.⁶
- P. Joseph Goldstein and John Surico, *New York Detective Guilty of Lying About Drug Arrest*, N.Y. TIMES (Jan. 24, 2018), available at:

³ Article incorporated by referenced herein, including all of its factual allegations and all of the allegations and findings in every case and internal investigation upon which it is based are incorporated in full as if fully set forth and pleaded herein.

⁴ Article incorporated by referenced herein, including all of its factual allegations and all of the allegations and findings in every case and internal investigation upon which it is based are incorporated in full as if fully set forth and pleaded herein.

⁵ Article incorporated by referenced herein, including all of its factual allegations and all of the allegations and findings in every case and internal investigation upon which it is based are incorporated in full as if fully set forth and pleaded herein.

⁶ Article incorporated by referenced herein; moreover, any and all of the factual allegations and all of the allegations and findings in every case and internal NYPD investigation upon which the article is based are incorporated in full as if fully set forth and pleaded herein.

<https://www.nytimes.com/2018/01/24/nyregion/new-york-detective-desormeau-perjury.html>.⁷

- Q. Joseph Goldstein, *He Excelled as a Detective, Until Prosecutors Stopped Believing Him*, N.Y. TIMES (Oct. 10, 2017), available at: <https://www.nytimes.com/2017/10/10/nyregion/he-excelled-as-a-detective-until-prosecutors-stopped-believing-him.html>.⁸
- R. Rick Rojas, *More Allegations Emerge Against Detectives Accused of Lying*, N.Y. TIMES (Mar. 7, 2017), available at: <https://www.nytimes.com/2017/03/07/nyregion/nypd-detective-kevin-desormeau-sasha-cordoba.html>.⁹
- S. Rick Rojas, *Two N.Y.P.D. Officers Are Charged With Lying About a Suspect*, N.Y. TIMES (Feb. 6, 2017), available at: <https://www.nytimes.com/2017/02/16/nyregion/nypd-sasha-cordoba-kevin-desormeau.html>.¹⁰
- T. J. David Goodman, *Review Board Notes Rise in New York Police Officers' False Statements*, N.Y. TIMES (May 14, 2015), available at: <https://www.nytimes.com/2015/05/15/nyregion/civilian-board-notes-rise-in-false-statements-by-new-york-officers-in-2014.html?action=click&contentCollection=N.Y.%20%2F%20Region&module=RelatedCoverage®ion=Marginalia&pgtype=article>.¹¹

193. As a result of Defendants' impermissible conduct, Plaintiff was injured and harmed. Accordingly, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

THIRTEENTH CLAIM FOR RELIEF
MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983
ARISING FROM UNCONSTITUTIONAL MUNICIPAL POLICES RELATING TO
THE CITY'S CUSTOM, PRACTICE, AND POLICY OF MAKING FALSE ARRESTS
AND FABRICATING EVIDENCE TO MAKE OVERTIME PAY

194. Plaintiff re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

195. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

196. The aforementioned customs, policies, usages, practices, procedures and rules of the City

⁷ Article incorporated by referenced herein; moreover, any and all of the factual allegations and all of the allegations and findings in every case and internal NYPD investigation upon which the article is based are incorporated in full as if fully set forth and pleaded herein.

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¹⁰ Article incorporated by referenced herein; moreover, any and all of the factual allegations and all of the allegations and findings in every case and internal NYPD investigation upon which the article is based are incorporated in full as if fully set forth and pleaded herein.

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of New York and the New York City Police Department included, but were not limited to, a) making arrests without reasonable or probable cause that the individual committed a crime, for the purpose of making overtime pay; and b) fabricating their account of their interactions with arrestees in official police paperwork in an attempt to justify their violation of said arrestees' constitutional rights and to make overtime pay.

197. The City and NYPD have long been aware of a wide-spread practice of false arrests at the end of tours of duty in order to obtain overtime and have failed to address this practice. The City and NYPD do not track or adequately discipline police officers who fabricate their paperwork or who testify falsely to justify said false arrests to obtain overtime. The City and NYPD has also failed to supervise or properly discipline police officers with a record of being unsuccessful defendants in Title 42 U.S. Code Section 1983 cases because they fabricated evidence.
198. The City and NYPD's overtime policy incentivizes police officers to make false arrests, and police malfeasance in general and as related to the overtime policy is inadequately monitored to prevent abuse.
199. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the NYPD constituted deliberate indifference to the safety, well-being and constitutional rights of plaintiff.
200. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the NYPD were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.
201. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the NYPD, plaintiff was unlawfully arrested and detained.
202. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating plaintiff's constitutional rights.
203. All of the foregoing acts by defendants deprived plaintiff of federally protected rights, including, but not limited to, the right:
 - A. Not to be deprived of liberty without due process of law;
 - B. To a fair trial;
 - C. To be free from false evidence being created by the police to charge crimes;
 - D. To be free from false evidence being created by the police to falsely charge crimes motivated by the desire to make overtime pay.
204. The existence of aforesaid unconstitutional customs and policies may be inferred from repeated occurrences of similar wrongful conduct, as documented in below:
 - A. *Payne et al. v. City of New York, et al.*, Southern District Of New York (14-cv-1805);
 - B. *Cordero v. City of New York*, 15-cv-3436 (JBW)(CLP) (Dec. 13, 2017);
 - C. Alan Feuer and Joseph Goldstein, *The Arrest Was a Bust. The Officers Got Overtime Anyway.*, N.Y. TIMES (Feb. 19, 2018), available at: <https://www.nytimes.com/2018/02/19/nyregion/new-york-police-overtime-pay-trial.html>.¹²;

¹² Article incorporated by referenced herein, including all of its factual allegations and all of the allegations and findings in every case and internal investigation upon which it is based are incorporated in full as if fully set forth and pleaded herein.

- D. Joseph Goldstein, *'Testilying' by Police: A Stubborn Problem*, N.Y. TIMES (March 18, 2018), available at: <https://www.nytimes.com/2018/03/18/nyregion/testilying-police-perjury-new-york.html>.¹³;
- E. Ari Rosmarin, *The Phantom Defense: The Unavailability of the Entrapment Defense in New York City "Plain View" Marijuana Arrests*, 21 J.L. & Pol'y 189, 235–36 (2012) ("Furthermore, NYPD supervisors obtain overtime pay when their subordinate officers do. This provides an incentive up and down the command structure to maximize opportunities for overtime and therefore to maximize arrests");
- F. Joseph Goldstein, *Police 'Testilying' Remains a Problem. Here Is How the Criminal Justice System Could Reduce It.*, N.Y. TIMES (March 22, 2018), available at: <https://www.nytimes.com/2018/03/22/nyregion/police-lying-new-york.html>.¹⁴;
- G. Jim Dwyer, *Misidentified and Tackled by the New York Police, but No Tennis Star Treatment*, N.Y. TIMES (Sept. 15, 2015), available at: https://www.nytimes.com/2015/09/16/nyregion/misidentified-and-tackled-by-the-police-but-no-tennis-star-treatment.html?_r=0.¹⁵
- H. Andrew Keshner, *NYPD accused of 'collars for dollars' overtime scheme in civil rights trial*, N.Y. DAILY NEWS (Feb. 21, 2018), available at: <http://www.nydailynews.com/new-york/nyc-crime/nypd-accused-collars-dollars-overtime-scheme-trial-article-1.3832745>.¹⁶
- I. Kevin Sheehan, *NYPD cop accused of false arrest admits he faked overtime reports*, N.Y. POST (Feb. 20, 2018), available at: <https://nypost.com/2018/02/20/nypd-cop-accused-of-false-arrest-admits-he-faked-overtime-reports/>.¹⁷
- J. *Top NYC-Paid Obtainers More Than Doubled Salary Through Overtime: Report*, 4 NBC NEW YORK (Aug. 3, 2017), available at: <https://www.nbcnewyork.com/news/local/Top-New-York-City-Obtainers-Overtime-Double-Pay-Annual-Salary-438320173.html>.¹⁸
- K. Sally Goldenberg and Azi Paybarah, *NYPD orders overtime review after report on Pantaleo obtainings*, POLITICO NEW YORK (Sept. 13, 2016), available at: <https://www.politico.com/states/new-york/city->

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hall/story/2016/09/in-wake-of-pantaleo-news-nypd-orders-overtime-review-105428.¹⁹

- L. Sally Goldenberg and Azi Paybarah, *NYPD orders overtime review after report on Pantaleo obtainings*, POLITICO NEW YORK (Sept. 13, 2016), available at: <https://www.politico.com/states/new-york/city-hall/story/2016/09/in-wake-of-pantaleo-news-nypd-orders-overtime-review-105428>.²⁰
- M. Report: Overboard on OT, Reductions in Uniformed Overtime Needed, Citizens Budget Commission (Aug. 17, 2017), available at: <https://cbcny.org/research/overboard-ot>.²¹
- N. Esha Ray and Graham Rayman, *NYPD cop lied about working overtime, got promotion while under investigation: 'The disciplinary system is dysfunctional'*, N.Y. Daily News (Mar. 16, 2018), available at: <http://www.nydailynews.com/new-york/bilks-nypd-unobtained-overtime-promoted-article-1.3877314>.²²
- O. Esha Ray, Shayna Jacobs, *Victoria Bekiempis and Graham Rayman, NYPD cop collected nearly \$15G in overtime by lying about working on rape cases, and still retires with full pension*, N.Y. Daily News (Mar. 15, 2018), available at: <http://www.nydailynews.com/new-york/15g-ot-lying-working-rape-cases-article-1.3875085>.²³

205. The NYPD's practice and custom of permitting police officers to make arrests at the end of their tours to collect overtime is so persistent, widespread, and pervasive as to constitute a custom or usage and imply the constructive knowledge or acquiescence of the City and its policymakers. The numerous instances of abuse, a small number of which are described above, particularly given that a number of lawsuits have been filed against the City, the NYPD, and NYPD officers demonstrates that the City is, or should have been, aware of the constitutional violations committed by the NYPD. The constitutional violations are so numerous, persistent, and pervasive that the need for corrective action is obvious, and the City's failure to take any such action constitutes deliberate indifference to the violations. This deliberate indifference to the NYPD's widespread deprivation of constitutional rights can be considered a policy, practice, or custom of the City.

206. The City, through its policymakers and agents, condoned, permitted, encouraged, and/or ratified the NYPD practices and customs challenged herein, which allowed NYPD officers to disregard and violate plaintiff's rights.

207. Furthermore, the City, through its policymakers and agents, has been deliberately indifferent to the rights of individuals, such as plaintiff, by failing to adequately train,

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²⁰ Article incorporated by referenced herein; moreover, any and all of the factual allegations and all of the allegations and findings in every case and internal NYPD investigation upon which the article is based are incorporated in full as if fully set forth and pleaded herein.

²¹ Report incorporated by referenced herein; moreover, any and all of the factual allegations and all of the allegations and findings in every case and internal NYPD investigation upon which the article is based are incorporated in full as if fully set forth and pleaded herein.

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monitor, supervise, and discipline its officials, employees, and agents, including the defendant police officers named herein specifically, to not make false arrests at the end of their tours in order to obtain overtime. As a result of the City's failure, plaintiff's rights were violated.

208. The practices and customs of the NYPD condone or tacitly authorize NYPD officers—acting as employees and agents of the City—to engage in arrests at the end of their tours of duty to obtain overtime. These practices and customs caused plaintiff to suffer a violation of his constitutional rights and were the moving force behind the deprivation of his constitutional rights.

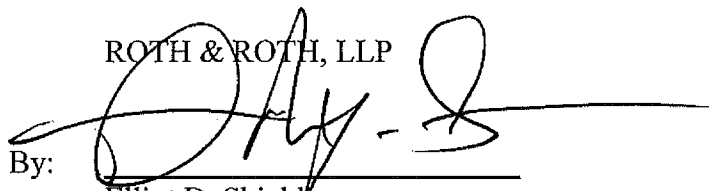
209. As a result of Defendants' impermissible conduct, Plaintiff was injured and harmed. Accordingly, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

WHEREFORE, plaintiff JOSE DEJESUS demand judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of compensatory damages, punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law.

Dated: New York, New York
April 12, 2018

Respectfully Submitted:

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By: 

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